

1 ENGROSSED HOUSE
2 BILL NO. 3835

By: May and Deck of the House

3 and

4 Gillespie of the Senate

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6
7 An Act relating to human trafficking; amending 22
8 O.S. 2021, Section 19c, which relates to criminal
9 arrest record expungements for victims of human
10 trafficking; deleting good cause standard;
11 authorizing expungements for criminal offenses
12 committed by human trafficking victims; clarifying
13 notice requirements; providing for the waiver of
14 filing fees and costs; requiring closed hearings;
15 directing courts to make certain considerations
16 regarding human trafficking victimization; providing
17 burden of proof standard; directing courts to grant
18 petitions if burden of proof is met; allowing victims
19 to seek relief at any time; and providing an
20 effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 22 O.S. 2021, Section 19c, is
23 amended to read as follows:

24 Section 19c. A. 1. The court, upon its own motion or upon
petition by the defendant ~~and for good cause shown~~, may enter an
order for expungement of law enforcement and court records relating
to a charge or conviction for ~~a prostitution-related~~ any criminal
offense committed as a result of the defendant having been ~~a victim~~

1 part of the victimization of human trafficking. The order shall
2 contain a statement that the expungement is ordered pursuant to this
3 section. ~~An order entered~~

4 2. A motion or petition filed by the defendant pursuant to this
5 section shall be subject to the notice requirements and provisions
6 of ~~subsections B through M of Section 19 of Title 22 of the Oklahoma~~
7 ~~Statutes~~ this title. Any filing fees or costs associated with the
8 motion or petition for expungement shall be waived by the court.

9 3. Upon the court setting a date for hearing the request for
10 expungement, the court shall require that said hearing be closed to
11 the public.

12 4. Records expunged pursuant to this section shall be sealed to
13 the public but not to law enforcement agencies for law enforcement
14 purposes.

15 B. To determine whether a person was a victim of human
16 trafficking, the court shall consider the following:

17 1. The definition of human trafficking, which shall have the
18 same meaning as such term is defined in Section 748 of Title 21 of
19 the Oklahoma Statutes or Sections 1589, 1590, 1591, or subsection A
20 of Section 1594 of Title 18 of the United States Code, depending on
21 whether the record sought to be expunged is pursuant to state or
22 federal law; and

23 2. Official documentation or prior determination of
24 victimization. Provided, official documentation or prior

1 determination of victimization is not necessary to obtain an
2 expungement under the provisions of this section. However, the
3 existence of official documentation, prior determination of
4 victimization, or a showing by the defendant that there is a causal
5 link between the period the defendant was trafficked and the crime
6 committed, shall create a presumption that the charge or conviction
7 considered for expungement was a direct result of said
8 victimization. If official documentation or prior determination of
9 victimization does not exist, the defendant shall attach to the
10 petition for expungement an affidavit executed by a service provider
11 expert witness or law enforcement expert witness attesting to the
12 status of the defendant as a victim of human trafficking.

13 C. The burden of proof for determining whether the charge or
14 conviction of the defendant in the petition for expungement was
15 committed as a result of having been a part of the victimization of
16 human trafficking shall be upon the defendant to prove a
17 preponderance of the evidence.

18 D. The court shall grant a petition for expungement filed by
19 the defendant under the provisions of this section if the burden of
20 proof is met.

21 E. An expungement may be pursued under the provisions of this
22 section regardless of the amount of time between the relevant charge
23 or conviction and when relief is sought.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the House of Representatives the 23rd day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate